

24CMCV00277 24CMCV00277

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-26

Motion: DEFENDANT LVIN LLC'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

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Case Number: 24CMCV00277 Hearing Date: June 26, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JANE DOE (J.A.),

Plaintiff,

vs.

LVIN

LLC,

Defendant.

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CASE NO: 24CMCV00277

[TENTATIVE]

ORDER RE: DEFENDANT LVIN LLC'S MOTION FOR SUMMARY JUDGMENT OR, IN THE
ALTERNATIVE, SUMMARY ADJUDICATION

Dept.

A

DATE:

June 5, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 02/28/2024

TRIAL:

11/02/2026

MOVING PARTY: Defendant
LVIN LLC

RESPONDING PARTY: Plaintiff
Jane Doe J.A.

Plaintiff Jane Doe J.A. ("Plaintiff") alleges that on February 15, 2022, she purchased a trip to Cabo San Lucas from defendant LVIN LLC ("Defendant"). Plaintiff alleges that, as part of the trip, she purchased an add-on "booze cruise" offered by Defendant. Plaintiff alleges that, while aboard the "booze cruise," she was sexually assaulted while in an intoxicated state by Defendant's employees.

On June 5, 2026, the court heard oral argument on this motion.

1. Evidentiary Objections

Plaintiff objects to portions of the declaration of Robert Fried and the attached exhibit. The court overrules objections nos. 1, 2 and 5. Exhibit A contains the referenced Bates numbers. See, also, *Hooked Media Grp., Inc. v. Apple Inc.* (2020) 55 Cal. App. 5th 323, 337–38. The court sustains Plaintiff's objection nos. 3, 4.

Defendant objects to portions of the declarations of Plaintiff and attorney Carlos F. Llinas, as well as the deposition of Marjorie Love Conway and statements made in Plaintiffs' separate statement. The court declines to rule on these objections as immaterial to its determination in this matter, with the exception of objection no. 8. The court overrules objection no. 8.

2. Discussion

Defendant moves for summary judgment, or in the alternative summary adjudication. Defendant contends Plaintiff agreed to a liability waiver in connection with the booze cruise, and that therefore Plaintiff may not bring claims against Defendant that arose in connection with

the booze cruise. In opposition, Plaintiff contends the waiver was provided after purchase of the ticket to the booze cruise, the waiver did not expressly state that it included a waiver of claims for negligence, and that the sexual assault fell within the alleged perpetrators' scope of employment with Defendant.

On

May 5, 2026, Defendant filed a reply separate statement prohibited under Code of Civil Procedure § 437c, subd. (b)(4). The court will therefore not consider it.

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atlantic Richfield Co.*

(2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.*

(1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact."

(*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

"Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) "If the

plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) “When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code Civ. Proc., § 437c, subd. (c).)

a. The liability waiver

Defendant contends that by purchasing her ticket for the booze cruise, Plaintiff entered into an agreement that included a liability waiver. More specifically, Defendant contends the receipt emailed to Plaintiff after she purchased the booze cruise ticket contains terms and conditions including a liability waiver which precludes Plaintiff from bringing this action. (Exhibit A to the Declaration of Robert Fried.)

The “Terms and Conditions,” set forth on the third page of a three-page email bearing the subject line “Booking Confirmed: March 8th: Buccaneer Booze Cruise on Mar 8, 2022 (Confirmation Code: 1886B9),” state:

“By participating in this tour/activity, you explicitly acknowledge that you have read, understand and agree to all of the terms and conditions listed herein and hold LVIN LLC, its partners, employees, management, members, executives, directors, shareholders, vendors and suppliers harmless for any issue, problem, accident or injury arising from any activity, event or tour that you participate in.” (Fried Decl., Ex. A.)

“California courts require a high degree of clarity and specificity in a release in order to find that it relieves a party from liability for its own negligence.” (Cohen v. Five Brooks Stable (2008) 159 Cal.App.4th 1476, 1489.) For a waiver and release to be valid, it must be “clear, unambiguous and explicit in expressing the intent of the parties . . . and is strictly construed against the defendant.” (Lund v. Bally’s Aerobic Plus, Inc. (2000) 78 Cal.App.4th 733, 738.) “Such a form is simply a written assumption of a known risk, i.e., a risk reasonably anticipated by the plaintiff. [Citation.] To be operative, the defendant’s negligence which results in plaintiff’s injury must be reasonably related to the object or purpose for which the release is given.” (Ibid.) “The express terms of the release must be

applicable to the particular negligence of the defendant, but every possible specific act of negligence of the defendant need not be spelled out in the agreement." (Benedek v. PLC Santa Monica, LLC (2002) 104 Cal.App.4th 1351, 1357.)

Defendant contends that Plaintiff agreed to the contractual liability waiver by purchasing the ticket and participating in the booze cruise after receiving the "Terms and Conditions" at issue in this motion. It is undisputed that the liability waiver contained in the "Terms and Conditions" was only provided to Plaintiff after she had already purchased the cruise ticket, contained within the digital equivalent of a receipt.

"The general rule is that a person is bound by the printed contractual provisions of an instrument which he accepts delivery of if, as an ordinarily prudent man, he could and should have read such provisions." (California State Auto. Ass'n Inter-Insurance Bureau v. Barrett Garages, Inc. (1967) 257 Cal.App.2d 71, 76.) However, under Civil Code § 2176, applicable to common carriers, "[a] passenger, consignor, or consignee, by accepting a ticket, bill of lading, or written contract for carriage, with a knowledge of its terms, assents to the rate of hire, the time, place, and manner of delivery therein stated; and also to the limitation stated therein upon the amount of the carrier's liability in case property carried in packages, trunks, or boxes, is lost or injured, when the value of such property is not named; and also to the limitation stated therein to the carrier's liability for loss or injury to live animals carried. But his assent to any other modification of the carrier's obligations contained in such instrument can be manifested only by his signature to the same." (Id.)

In *Curtis v. United Transfer Co.* (1914) 167 Cal.112, the court interpreted Civil Code § 2176 to mean that, where a customer of a common carrier is given a receipt that contains terms and conditions, those terms are only contractually binding if the plaintiff had actual or constructive knowledge of those terms at the time that the plaintiff accepted the receipt.

"If she had actual knowledge of its terms when she accepted it, of course she was bound under the provisions of the section, but, under the theory of respondent, if she did not have knowledge of the terms she is bound anyway, because, as matter of law, by merely accepting it she had constructive notice of its terms.... We cannot agree with this view and are satisfied that under the

section, whether the acceptance of such a receipt or paper by the consignor was with knowledge of its terms or not... was a question of fact for the jury and not a matter of law for the court." (Id. at p. 115.)

"Mere acceptance is not the controlling question. The section assumes in providing what shall constitute assent that there has been an acceptance—that is the carrier delivered and the consignee received, the paper. The controlling question is, Was there an acceptance with knowledge of the terms of the limitation of liability? This is to be determined not merely from acceptance but from a consideration of all the circumstances, including acceptance, surrounding the transaction between the parties at the time the receipt was given and taken. From these it is for the jury to determine whether the plaintiff had actual knowledge that the paper was a contract when she received it or if not, whether the circumstances under which she received it were such as put her on notice of the contents of the instrument—constructive notice or, as that term imputes, knowledge implied by law. This question can properly be submitted to the jury under appropriate instructions on the subject, embracing the rule as to constructive notice, and the jury determine the fact, as we think it is its province to do." (Id., at pp. 115-116.)

Based on the foregoing, if mere acceptance is not the controlling question, nor is mere receipt.

A common carrier is defined as "every one who offers to the public to carry persons, property, or messages, excepting only telegraphic messages." (Civ. Code § 2168.) Factors in determining whether a person is a common carrier include "(1) whether the party maintained an established place of business for the purpose of transporting passengers; (2) whether the party engaged in transportation as a regular business and not as a casual or occasional undertaking; (3) whether the party advertised its transportation services to the general public; and (4) whether the party charged standard rates for its service." (Huang v. The Bicycle Casino, Inc. (2016) 4 Cal.App.5th 329, 339.) Not all factors need be present for a person to qualify as a common carrier. (Ibid.)

Here, LVIN offered to the general public, including Plaintiff, to transport people for profit in the form of the booze cruise, although Defendant contends that it retained an independent contractor who

operated the booze cruise. (Fried Decl. ¶¶ 2, 3, 6.) Defendant contends that it was in the business of marketing and selling coordinated spring break and travel packages, within which was included add-ons such as the booze cruise. (Fried Decl. ¶¶ 2, 6.) Defendant contends that it sold tickets for its travel packages and add-ons through a third-party ticketing and booking service, with automatic completion of booking arrangements once a customer purchased their ticket, indicating that Defendant charged standard rates for its services rather than personalized rates. (Fried Decl. ¶ 3.) “[C]ommon carriers may not... insulate themselves from liability for negligence occurring in the conduct of their business by engaging independent contractors to transport freight for them.” (Hill Brothers Chemical Co. v. Superior Court (2004) 123 Cal.App.4th 1001, 1009.) Although Defendant argued at the hearing that it had little more involvement than a ticket reseller, Defendant neither provides evidence of its lack of involvement in the organization of the booze cruise nor provides evidence that Plaintiff cannot establish its involvement in the organization of the booze cruise. Moreover, even assuming an independent contractor operated the booze cruise, there is evidence that would permit a reasonable trier of fact to conclude that LVIN “advertised its transportation services” to the general public.

Based on the factors set out in Huang, the evidence provided is sufficient that a reasonable trier of fact could determine that Defendant is a common carrier. There is therefore a triable issue of material fact as to whether Defendant qualifies as a common carrier in this context.[1]

If Defendant qualifies as a common carrier, Civil Code § 2176 is applicable, and under Curtis, in order to establish that Plaintiff agreed to the liability waiver, Defendant must demonstrate that Plaintiff had actual or constructive knowledge of the liability waiver at the time of accepting, or in this case passively receiving, the receipt via email which contained the Terms and Conditions on the third page of a three-page email identified in the subject line merely as a confirmation of Plaintiff’s purchase of the booze cruise. Under Curtis, this is a question of fact for the jury.

Defendant has made no argument or proffered any evidence to establish that no triable issue of material fact exists as to whether Plaintiff had actual or constructive knowledge of the liability waiver. Instead, Defendant relies on Plaintiff’s undisputed receipt of the confirmation email which she produced during

discovery. Defendant has therefore failed to meet its burden establish that there are no triable issues of material fact as to whether the liability waiver was a binding part of the agreement between Defendant and Plaintiff.

Furthermore, even if Defendant is not a common carrier, the general rule under Barrett Garages creates a triable issue of material fact. Under the general rule, a person is bound by the acceptance of printed contractual provisions if, as an ordinarily prudent person, they should have read them. This is a question of fact. (Barret Garages, supra, 257 Cal.App.2d 71, 76.) The court in Barrett Garages presents the example of a person who deposits money with a bank and receives a receipt containing an agreement stating that the bank is not liable for forged or altered checks, and states that such an agreement is unenforceable where he did not sign that agreement and its terms were not called to his attention. (Ibid.) “[S]uch a provision was a ‘trap for the unwary’ and unenforceable. [Citation.] (Ibid.) Here, the liability waiver was provided after Plaintiff purchased the ticket to the booze cruise on the third page of an email with the subject line “Booking Confirmed: March 8th: Buccaneer Booze Cruise on Mar 8, 2022 (Confirmation Code: 1886B9).” (Fried Decl., Ex. A.) A reasonable trier of fact could find that the terms and conditions at the bottom of this booking confirmation was not a manner of writing that an ordinarily prudent person would be expected to read.

Therefore, irrespective of whether Defendant is a common carrier, there is a triable issue of material fact as to whether the liability waiver was a binding part of the agreement between Defendant and Plaintiff.

Defendant’s argument as to Plaintiff’s negligence causes of action, the second through seventh causes of action, relies entirely upon the liability waiver as barring these causes of action. Defendant has failed to establish that there are no triable issues of material fact as to whether it qualifies as a common carrier. Defendant has therefore failed to establish that there are no triable issues of material fact as to the enforceability of the liability waiver. As such, Defendant has failed to establish that there are no triable issues of material fact as to Plaintiff’s negligence causes of action.

As Defendant has failed to carry its burden as to all

causes of action, the court will deny Defendant's motion for summary judgment.

b. Vicarious liability

Defendant contends that Plaintiff's first cause of action for vicarious liability fails because the person who assaulted Plaintiff was an employee of Wild Cabo Tours, the independent contractor that Defendant retained to operate the booze cruise, and not an employee of Defendant. Defendant also contends that Wild Cabo Tours was not an agent of Defendant and, even if it were, that sexual assault is not within the scope of employment as a matter of law.

Common-law respondeat superior doctrine holds an employer vicariously liable for the tortious acts of its employee when those acts are done "within the scope of his or her employment... ." (Baptist v. Robinson (2006) 143 Cal.App.4th 151, 160 (Baptist).) "A risk arises out of the employment when 'in the context of the particular enterprise an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among other costs of the employer's business.' [Citation.]" (Farmers Ins. Group v. County of Santa Clara (1995) 11 Cal.4th 992, 1003, emphasis in original.) An employer does not assume strict liability for its employees' actions. (Jeewarat v. Warner Bros Entertainment, Inc. (2009) 177 Cal.App.4th 427, 435, citing Baptist, supra, at p. 161.) That said, in determining whether to impose vicarious liability, the court focuses closely on the factual circumstances of an employee's conduct, informed by the policy goals of the respondeat superior doctrine. (See Baptist, supra, 143 Cal.App.4th at p. 161.)

"An essential element of respondeat superior is a causal nexus or reasonable relationship between the duties of employment and the conduct causing injury." (Id. at pp. 161-162.) "[T]he incident leading to the injury must be an 'outgrowth' of the employment ... ; the risk of tortious injury must be 'inherent in the working environment' '... or 'typical of or broadly incidental to the [employer's] enterprise.' " (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 298 (Lisa M.).) In applying respondeat superior liability courts have relied on considerations of "proximate cause" (Rodgers v. Kemper Constr. Co. (1975) 50 Cal.App.3d 608, 621) or whether

tortious conduct was engendered by the defendant's employment. (Lisa M., supra, 12 Cal.4th at p. 300.)

Defendant contends that the vicarious liability claim fails because Wild Cabo Tours was not an actual or ostensible agent of Defendant. A principal is vicariously liable for torts committed by their agent within the scope of agency. (Hughes v. Farmers Ins. Exchange (2024) 107 Cal.App.5th 73, 82.)

Agency is either actual or ostensible. "Actual agency arises when the principal's conduct causes the agent reasonably to believe that the principal consents to the agent's act on behalf of the principal." (Rogers v. Roseville SH, LLC (2022) 75 Cal.App.5th 1065, 1074.) "Ostensible agency arises when the principal's conduct causes the third party reasonably to believe that the agent has the authority to act on the principal's behalf." (Ibid.)

For an agency relationship to exist, "the asserted principal must have a sufficient right to control the relevant aspect of the purported agent's day-to-day operations." (Barenborg v. Sigma Alpha Epsilon Fraternity (2019) 33 Cal.App.5th 70, 85.) Additionally, "[t]he power of the principal to terminate the services of the agent gives him the means of controlling the agent's activities." (Malloy v. Fong (1951) 37 Cal.2d 356, 370.)

The general rule is that a hirer is not vicariously liable for the negligent torts of an employee of an independent contractor where the hirer did not exercise control over the contractor. (Johnson v. Ralphs Grocery Co. (2012) 204 Cal.App.4th 1097, 1107 (Johnson).) However, even where the hirer did not exercise control over the contractor, a hirer may be vicariously liable for the intentional torts of an independent contractor committed in the scope of the contractor's employment. (Noble v. Sears, Roebuck & Co. (1973) 33 Cal.App.3d 654, 661-663). Defendant also contends that sexual assault is beyond the scope of employment as a matter of law. However, sexual assaults are not per se beyond the scope of employment, although courts have rarely held an employee's sexual assault or sexual harassment of a third party falls within the scope of employment. (Daza v. Los Angeles Community College District, (2016) 247 Cal.App.4th 260, 268, citations omitted.)

Defendant contends that Wild Cabo Tours and the

alleged perpetrators were not actual agents of Defendant because Defendant did not exercise any control over the manner in which Wild Cabo Tours operated the booze cruise, contractually specifying only the result. In support of this contention, Defendant provides the declaration of Robert Fried, who states that LVIN had no right to control, and did not control, Wild Cabo Tours' day-to-day operations in any respect. The court has sustained Plaintiff's objection to that statement as an improper legal conclusion.

Defendant further contends that LVIN had no authority over (a) the hiring, selection, or background checking of Wild Cabo's crew; (b) the training, supervision, or discipline of Wild Cabo's crew; (c) the staffing or deployment of crew members aboard the vessel; (d) the manner or means by which Wild Cabo operated the vessel or conducted the cruise; or (e) the conduct of Wild Cabo's crew before, during, or after the cruise. It contends Wild Cabo Tours was solely responsible for all aspects of operating the vessel and supervising its own personnel. (Fried Decl. ¶ 8.) Again, the court sustained Plaintiff's objection to this evidence, which lacks foundation and constitutes an improper legal conclusion with respect to LVIN's authority, contractual right and/or duty to control Wild Cabo's crew, as well as Wild Cabo's purported sole responsibility for all aspects of operating the vessel and supervising its own personnel.

Defendant has provided no admissible evidence as to the nature of the alleged perpetrators' employment with Wild Cabo Tours as Defendant's independent contractor. Defendant merely states it is believed they were employees of Wild Cabo Tours and "were not on LVIN's payroll, were not directed or supervised by LVIN, and were not subject to LVIN's control in any manner." (Fried Decl. ¶ 12.) The lack of foundation for this assertion aside with respect to LVIN's alleged lack of control, contrary to Defendant's contention, Defendant is not immune as a matter of law from vicarious liability for the intentional tortious acts of an independent contractor. (See Johnson, *supra*, 204 Cal.App.4th at p. 1107.)

Therefore, under Noble, the key question is whether the intentional torts of the alleged perpetrators were committed in the scope of their employment as Defendant's independent contractor. As previously noted, Defendant has provided no evidence as to the nature of the alleged perpetrators' employment with Wild Cabo Tours, and therefore as to whether their intentional torts were committed in the scope of their employment.[2] Defendant has therefore failed to carry its burden.

Notably, Defendant did not proffer any agreement that exists between Wild Cabo and LVIN setting forth each entity's rights and duties as to the other with respect to the operation of the Booze Cruise, from which the court might ascertain whether LVIN had any authority and/or duty to control Wild Cabo or its crew.

Based on the foregoing, the court concludes that Defendant did not meet its burden of establishing that no triable issue of material fact exists as to issue of vicarious liability based upon any actual authority and/or duty to control Wild Cabo or its crew. As a result, Defendant did not meet its burden of establishing that summary adjudication is proper. Therefore, the court declines to analyze Defendant's argument with respect to ostensible authority.

3. Conclusion

Based on the foregoing, the court DENIES Defendant's motion for summary judgment, or in the alternative summary adjudication.

Defendant is ordered to give notice.

IT
IS SO ORDERED.

DATED: June 26, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court

[1] Although the court is only considering Defendant's evidence at this time, the court will note that Exhibit 7 to Plaintiff's opposition constitutes a set of screenshots taken from Defendant's website in 2024. These screenshots describe the booze cruise as the "Cabo Booze Cruise with LVIN," indicating that Defendant holds itself out to the general public as being actively involved in the cruise itself, including by providing onboard staff.

[2] The

court will also note that the incident occurred on a cruise where the purpose was clearly to drink alcohol continuously, as indicated by the name "booze cruise." A reasonable trier of fact might find that such an environment may enhance the risk of sexual assault by an employee, or other harm occurring to the guest.